



So You Think the Children Are Safe at Home? An Analysis of Philippines' Readiness to Launch a Digital War Against Exploitation

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I. Introduction

The advent of the digital age, while bringing revolutionary changes in connecting people, has enabled a very alarming form of child exploitation that thrives in the virtual world. In the recent years, especially during the height of the pandemic, the Philippines has slowly emerged as a hotspot for cases of Online Sexual Abuse and Exploitation of Children or OSAEC and the proliferation of Child Sexual Abuse and Exploitation Materials or CSAEM. The availability of the internet, which has become wide-spread and can even reach far-flung areas in the country, has created a fertile ground for perpetrators to victimize children, with minimal risk of detection.

This article argues that while the legal framework of the Philippines has significantly progressed through sensible legal reforms, such reforms seem tone-deaf as the actual response still struggles to keep pace with the evolving forms of digital abuse. The challenges of enforcement, jurisdictional complexities, and digital evidentiary issues are factors to consider the recalibration of strategies to safeguard children in an era where inhibitions are close to non-existent in the digital space.

II. Understanding OSAEC and CSAEM

Online sexual abuse or exploitation of children (OSAEC) refers to the use of ICT as a means to abuse and/or exploit children sexually, which includes cases in which offline child abuse and/or exploitation is combined with an online component. This can also include, but is not limited to, the production, dissemination and possession of CSAEM; online grooming of children for sexual purposes; sexual extortion of children, sharing image-based sexual abuse; commercial sexual exploitation of children; exploitation of children through online prostitution; and live-streaming of sexual abuse, with or without the consent of the victim.¹

Child sexual abuse or exploitation material or child sexual abuse material (CSAEM/CSAM) refers to any representation, whether offline, or by, through or with the use of ICT, by means of visual, video, audio, written, or any combination thereof, by electronic, mechanical, digital, optical, magnetic or any

¹ Republic Act 11930, §3(t)



other means, of a child engaged or involved in real or simulated sexual activities, or depicting acts of sexual abuse or exploitation of a child as a sexual object. It shall also include materials that focus on the genitalia or other private body parts of a child.²

The nature of OSAEC and CSAEM has evolved with digital innovation. Perpetrators now leverage encrypted messaging apps, digital wallets, cryptocurrency, and peer-to-peer platforms to produce, distribute, and monetize abusive content. These technological shifts pose significant challenges for law enforcement and judicial authorities, particularly in locating offenders, preserving evidence, and prosecuting crimes across borders.

III. The Philippine Legal Framework

Anti-OSAEC and Anti-CSAEM Act of 2022³

This is a landmark legislation specifically addressing online child sexual exploitation. It expands the definition of CSAEM, criminalizes grooming and livestreaming of abuse, and strengthens extraterritorial jurisdiction. It also imposes obligations on internet intermediaries to preserve data and report abuse, and creates a National Coordinating Center under the Department of Justice.

Anti-Child Pornography Act of 2009⁴

This law criminalizes the production, possession, and distribution of child pornography. It mandates internet service providers to cooperate with law enforcement and includes provisions on the reporting and blocking of abusive content.

Anti-Trafficking in Persons Act⁵

This law covers child trafficking facilitated through digital means and penalizes those who recruit, transport, or harbor minors for online sexual exploitation.

² Republic Act 11930 §3(c)

³ Republic Act No. 11930.

⁴ Republic Act No. 9775.

⁵ Republic Act No. 9208, as amended by RA 10364 .



Special Protection of Children Against Abuse, Exploitation and Discrimination Act⁶

This law provides the general framework for child protection in the Philippines and is often cited in OSAEC-related prosecutions.

The above statutes form a multi-layered legal architecture for combating OSAEC and CSAEM, supported by specialized units such as the DOJ Office of Cybercrime, PNP Anti-Cybercrime Group, NBI Cybercrime Division, and the Inter-Agency Council Against Trafficking (IACAT).

IV. The Philippine Landscape on OSAEC and CSAEM

Incidents Rising

In 2025, the Commission on Human Rights report published by the CHR's Children's Rights Center⁷ highlighted a sudden escalation in OSAEC cases which surged on the onset of the Covid-19 pandemic. In 2019, the National Center for Missing and Exploited Children (NCMEC) recorded 426,000 cyber tipline reports. This figure nearly tripled in 2020 to 1,297,000 cases, and continued to escalate in 2023, with 2,740,905 reported incidents.⁸ The surge is more than sixfold in a matter of four years which demonstrates the intensity of online child exploitation in the Philippines.

Perpetration Drivers

CHR identifies poverty and economic vulnerability as key drivers behind the surge. The more alarming fact is that these exploitations are, more often than not, being facilitated by family members rather than criminals and syndicates. There is reluctance on the part of the victims to report such abuses due to shame, fear, and emotional trauma.⁹

⁶ Republic Act No. 7610.

⁷ CHR Releases Human Rights Situation Report On The Online Sexual Abuse And Exploitation Of Children In The Philippines, https://chr.gov.ph/2025/statements/press-release/chr-releases-human-rights-situation-report-on-the-online-sexual-abuse-and-exploitation-of-children-in-the-philippines/?utm_source=chatgpt.com, last accessed July 23, 2025.

⁸ IJM Supports Philippine President's Directive to Combat Online Sexual Exploitation of Children, <https://www.ijmuk.org/stories/ijm-supports-philippine-presidents-directive-to-combat-online-sexual-exploitation-of-children>, last accessed July 23, 2025.

⁹ Supranote 7.



The University of the Philippines-Manila also published an article on the perpetrator profiles on OSAEC. The result is very alarming with 51% of offenders being female, primarily caregivers or family members. Among identified relationships: 46% were strangers introduced by third parties, 17% were family members, 14% were friends, and 12% were neighbors.¹⁰ This was based on a study of cases heard by the Supreme Court from 2003 to 2024.

Case Handling and Convictions

When the Anti-OSAEC and Anti-CSAEM Law was enacted in 2022, the DOJ established the National Coordinating Center (NCC-OSAEC-CSAEM) under IACAT. By November 2023, the PNP Women and Children Protection Center had recorded over 17,600 child rights violation cases, many of which fell under online abuse provisions. Out of these, more than 1,000 victims had been formally reported to the DOJ, and prosecutions were underway against over 300 alleged perpetrators.¹¹ In the early 2024, at least 200 convictions have been reported under OSAEC/CSAEM cases.¹²

Context Analysis

The magnitude of the reports underscores systematic vulnerabilities, especially among impoverished communities who are digitally exposed. The greater problem here is that most of the OSAEC and CSAEM incidents are not reported due to social stigma and persecution from trusted relationships. This cannot be prevented as there is prevalence of family-based offenders that complicates detection and intervention. Also, while there are more than 200 convictions already from the inception of the Anti-OSAEC and Anti-CSAEM Law, this number pales in comparison to the millions of CHR's reported incidents. What seems to be the legal hurdle are the evidentiary challenges and enforcement-resource bottlenecks that prevents broader prosecution of these abuses.

¹⁰ Trusted Individuals, Not Criminal Syndicates, Behind Online Child Abuse in the Philippines, https://www.upm.edu.ph/cpt_news/trusted-individuals-not-criminal-syndicates-behind-online-child-abuse-in-the-philippines/, last accessed July 23, 2025.

¹¹ Filipinos Cautioned vs. AI-Generated Child Exploitation Materials, <https://www.pna.gov.ph/index.php/articles/1218385>, last accessed July 23, 2025.

¹² NCC-OSAEC-CSAEM Concludes 3-Day Cascading Forum On R.A. No. 11930, https://www.doj.gov.ph/news_article.html?newsid=qAdTXp0ZIVsFCaUegj27atSTXZYWVTXuhxB0uVsyDTc, last accessed July 23, 2025.



V. International Comparatives

The global legal response to Online Sexual Abuse and Exploitation of Children (OSAEC) and Child Sexual Abuse and Exploitation Materials (CSAEM) has evolved rapidly, with several jurisdictions implementing landmark reforms.

The United Kingdom, through its Online Safety Bill, imposes statutory duties of care on digital platforms to address illegal content, particularly CSAEM.¹³ Australia's Online Safety Act 2021 grants its eSafety Commissioner powers to order takedowns of harmful content within 24 hours.¹⁴

The Netherlands has become a pivotal actor in transnational OSAEC investigations. In coordination with INTERPOL and Europol, Dutch authorities have implemented rapid-response digital forensic protocols to combat livestreamed child abuse and CSAEM dissemination.¹⁵ Such collaborations demonstrate how strong national institutions, embedded in international frameworks, enhance global enforcement capacity.

Moreover, Budapest Convention on Cybercrime, which the Philippines ratified in 2018, is the primary instrument governing cross-border cooperation in cybercrime investigations. It provides standardized rules on real-time traffic data collection, preservation of digital evidence, and mutual legal assistance.¹⁶ Furthermore, the Philippines is bound by the Optional Protocol on the Sale of Children, Child Prostitution and Child Pornography (OPSC) under the UNCRC. This treaty obliges State Parties to criminalize all forms of child exploitation and adopt legislative, administrative, and judicial remedies.

These developments are instructive for the Philippines.

VI. Legal Gaps and Challenges in Status Quo

Despite the presence of multiple legislative measures addressing online child exploitation, critical implementation gaps persist within the Philippine legal and enforcement ecosystem.

¹³ Woods, L. (2022). "The Online Safety Bill and the Duty of Care Debate." *Modern Law Review*, Vol. 85(3).

¹⁴ Greenleaf, G. & Suzor, N. (2021). "Balancing Rights in Australia's Online Safety Laws." *Melbourne University Law Review*, Vol. 45(2).

¹⁵ Van Erp, J. & van der Hulst, R. (2020). "Dutch Cybercrime Enforcement: Transnational Trends and Local Practices." *European Journal of Crime, Criminal Law and Criminal Justice*, Vol. 28.

¹⁶ Brenner, S. (2011). "The Council of Europe Convention on Cybercrime." *Journal of International Law and Technology*, Vol. 6.



Extraterritoriality

The international nature of OSAEC and CSAEM offenses is one of the most dangerous issues. A lot of the perpetrators are operating outside the territorial jurisdiction of the Philippines. Such perpetrators orchestrate abuse through livestreams, online grooming, or digital distribution while remaining physically untouchable by local authorities. This is a problem that can only be resolved through cooperation with foreign governments on mutual legal assistance treaties (MLATs). This is complicated as it hinges on the compatibility of substantive criminal laws, and the efficiency of intergovernmental communication channels. In some cases, delays in coordination result in the loss of key digital evidence or the inability to apprehend foreign-based perpetrators before they change platforms or identities.

Competence in Handling Digital Evidence

Digital evidence is also challenging. OSAEC crimes frequently involve livestreamed abuse that is ephemeral which can leave no trace unless captured in real time by law enforcement. This requires extensive technological and digital resources which presently the government is struggling to provide. Moreover, the chain of custody for digital materials, already a sensitive issue in cybercrime litigation, is even more precarious in OSAEC cases where files may be transferred across encrypted servers or peer-to-peer networks. This means that the authentication, preservation, and admissibility of such evidence in Philippine courts remain contested areas especially when there is still lack in experience in handling such type of evidence.

Institutional Preparedness

To make matters worse, it is not an uncommon problem that the government does not have the budgetary prowess to cater to enforcement. The institutional capacity remains a foundational barrier. Digital forensic capabilities of the government are often limited by lack of budget, understaffed agencies, and outdated technological infrastructure. Moreover, while laws such as RA 11930 impose mandatory reporting and data retention obligations on Internet Service Providers (ISPs) and content platforms, compliance monitoring remains weak, especially for global technology companies not based in the Philippines.



Right to Privacy

Surveillance can also be hampered by absolute prioritization of privacy rights.. Efforts to introduce aggressive content monitoring, data scraping, or mass surveillance to detect CSAEM often clash with constitutional protections under the Philippine Data Privacy Act of 2012 (RA 10173) and Article III, Section 3 of the 1987 Constitution, which guarantees the right to privacy and communication. This usually lead to debates on the proportionality and necessity of state intrusion especially in seeking access to encrypted communications.

Community Digital Literacy

Public awareness and community involvement remain underdeveloped. This weakens the first line of defense against OSAEC and CSAEM. Local government units, barangay officials, educators, and even parents are often unequipped to recognize red flags of abuse, particularly when it occurs in the privacy of homes. This failure to cultivate digital literacy and community vigilance, despite its inclusion in national child protection strategies, means that OSAEC cases frequently go unreported or undetected until major crackdowns are initiated. Without a more aggressive grassroots support system, even the most well-crafted laws will struggle to provide protection for vulnerable Filipino children.

VII. Conclusion

The ongoing battle in the digital landscape is not simply a matter of enforcing criminal statutes but a direct challenge to our collective commitment to uphold children's rights. These forms of exploitation violate the very core of child protection: the right of every child to grow up in an environment free from abuse, fear, and violence.

While the Philippines has enacted a series of legislative measures, these efforts, though substantial, must be continuously recalibrated to respond to the complex realities of modern digital harm.

The challenges we face today are not static. Digital platforms evolve rapidly, and with them, so do the tactics of predators who exploit both legal and technological loopholes. It is no longer enough to pass laws that criminalize abusive conduct after the fact. Legal norms must anticipate emerging threats and provide flexible frameworks. For this to happen, legal reforms must be met with genuine institutional preparedness.



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Yet laws and institutions alone cannot fully shield children from exploitation. A vigilant and informed public is indispensable. Parents, educators, barangay officials, and civil society actors all play crucial roles in early detection, reporting, and prevention. Building a digitally literate society, where online risks are widely understood and responsibly mitigated, is as critical as punishing offenders. Community-based education and advocacy campaigns must be adequately funded and institutionalized.

Moreover, regional and international cooperation must be deepened beyond existing treaties and memoranda. Tackling OSAEC and CSAEM in a meaningful way requires a consistent framework for cross-border investigations, standardized evidentiary procedures, and joint prosecutorial strategies. The Philippines must remain an active participant in multilateral efforts, particularly within ASEAN and under UN-led initiatives, to ensure that its domestic legal framework is aligned with global standards while retaining sufficient teeth to hold all enablers accountable.

Ultimately, the digital world must not become a space where vulnerable children are rendered invisible, voiceless, or disposable. We must build an online environment rooted in safety, transparency, and dignity. Protecting children from digital exploitation is not a matter of convenience, nor should it be treated as an ancillary concern. It is a defining test of our legal imagination, moral will, and human compassion in the 21st century.



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